Before the
CONSUMER FINANCIAL PROTECTION BUREAU
Washington, D.C. 20552

COMMENTS

of the

ANA – ASSOCIATION OF NATIONAL ADVERTISERS

on the

"Request for Information Regarding Data Brokers and Other Business Practices Involving the Collection and Sales of Consumer Information"
Docket No. CFPB-2023-0020

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On behalf of the Association of National Advertisers ("ANA"), we provide comments ("Comments") in response to the Consumer Financial Protection Bureau's ("CFPB" or "Bureau") "Request for Information Regarding Data Brokers and Other Business Practices Involving the Collection and Sale of Consumer Information" ("RFI").[1] The CFPB states that the RFI is a "part of a series of efforts to examine data collection and use" and serves to inform the Bureau about "new business models that sell consumer data" and "consumer harms and any market abuses" by companies that sell consumer data.[2] The RFI notes that such companies may be first parties that collect information directly from consumers, or third parties with whom consumers do not directly interact.[3] In the RFI, the CFPB recounts its statutory mandate "to promote fair, transparent, and competitive markets for consumer financial products and services."[4] The ANA shares the Bureau's commitment to fostering competition in the American marketplace for the benefit of consumers, and our Comments aim to underscore the importance of ethical and responsible data practices in achieving this goal.

As America's oldest and largest advertising trade association, the ANA has long supported brands, advertisers, marketing service providers (including what the RFI describes as "data brokers"), and a diversity of entities that leverage information received from data brokers and other third parties to inform product design, compete in the marketplace, and engage in advertising to connect consumers with relevant messaging, products, and services, while protecting consumer privacy and maintaining the integrity and security of data processed through their systems. Our mission is to drive growth for marketing professionals, brands and businesses, the industry, and humanity. Our members include small, midsize, and large firms, and virtually all of them engage in or benefit from ethical and responsible data practices that give consumers access to relevant information, messaging, and advertisements at the right time and in the right place.

Our Comments highlight the invaluable role of data brokers in the modern American economy, as they benefit consumers while enabling small, midsize, and start-up businesses to access the marketplace on competitive footing with large incumbent firms. The RFI reveals the Bureau's predisposition to presume that data broker models produce "consumer harm and . . . market abuses, including those that resemble harms Congress originally identified in 1970 in passing the [Fair Credit Reporting Act] FCRA" when it explicitly asks commenters for information supporting this view in its introductory background section.[5] The ANA emphatically agrees with the Bureau that data should not be misused to harm consumers. However, the Bureau relegates the notion that data brokers may in fact provide benefits to consumers to a single market-level question buried in its enumerated list of twenty-two such questions and a single question in its individual inquiries section. To help ensure that the Bureau receives a fulsome picture of the benefits to consumers from the digital ecosystem in which data brokers play a key role, our Comments first aim to inform the Bureau of the myriad benefits consumers receive from ethical and responsible data practices (often facilitated by data brokers)

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[1] CFPB, *Request for Information Regarding Data Brokers and Other Business Practices Involving the Collection and Sale of Consumer Information*, 88 Fed. Reg 16951 (Mar. 21, 2023) [hereinafter CFPB RFI], located here.
[2] *Id.* at 16952-53.
[3] *Id.* at 16953.
[4] *Id.*
[5] *Id.* at 16952

in the form of free and low-cost services, information access, and more. Second, we describe the vital role of ethical and responsible data practices and data brokers in the modern American economy. Third, we highlight how advertising best practices advanced by the ANA and other advertising industry partners empower consumers to understand and exercise control over common data practices, and guide companies to use data ethically and responsibly. Our Comments conclude by highlighting the ANA's support for comprehensive federal privacy legislation that would bar misuses of personal data and provide equal protections to individuals across the country.

I. Ethical and Responsible Data Practices Provide Myriad Benefits to Consumers

Buried in its questions, the Bureau's RFI asks a single market-level question and a single individual inquiry on how data broker practices benefit consumers.[6] This vastly misunderstands and understates the importance of data brokers' ethical and responsible data practices, which benefit consumers by promoting equitable information access and proactive outreach, encouraging product innovation, and subsidizing thousands of dollars in value for free and low-cost services each year. In the financial sector specifically, ethical and responsible data practices protect consumers from fraud, increase access to financial instruments, promote competition, and ultimately improve the financial product offerings available to consumers.

Ethical and responsible data use empowers entities to engage in proactive outreach to consumers in historically underserved and marginalized communities. For example, members of the ANA's Nonprofit Federation (such as the American Red Cross, Habitat for Humanity, The Salvation Army, and countless other organizations) use data to inform their provision of direct services and disaster recovery efforts, and to solicit investment in their ongoing work.[7] In addition, the ANA's members utilize data, including data from data brokers, to promote visibility and inclusion of marginalized and underserved communities in advertising and broader media representation, as well as to help ensure members of such communities receive information about items like personal care and food products that may be of interest.[8] Further, the ANA's members rely on data to partner with minority-owned businesses, improve messaging to underserved and marginalized communities, and track progress on key diversity, equity, and inclusion goals.[9] Ethical and responsible data practices, including by data brokers, also help enable the ANA's members to reach underserved and marginalized communities in their preferred languages via their preferred platforms, and determine where to place new business locations to reach underserved markets. For example, ethical and responsible data practices, facilitated in part by data brokers, help inform a grocer to place a location in a food desert, and a transportation network to expand its services into previously underserved markets.

Data broker services in particular help connect consumers to small businesses and niche products to which consumers otherwise likely would not have exposure. Small businesses rely on information from third parties like data brokers to identify individuals likely to be interested in their products, and without this data, these providers would, at best, shrink their operations or

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[6] CFPB RFI, Market-Level Inquiries Question 14 and Individual Inquiries Question 2, at 16954.
[7] *See* The ANA, *Nonprofit Federation*, located here.
[8] *See* The ANA, *Diversity, Equity, Inclusion, and Belonging Resource Center*, located here.
[9] *See, e.g., id.*; The ANA, *Alliance for Inclusive and Multicultural Marketing*, located here.

at worst, disappear altogether.[10] Data brokers make it possible for bespoke artisans to connect with potential buyers of their crafts, for startup baby product companies to identify new parents, and for local mom-and-pop shops to reach a broader online audience and scale their operations. Restricting ethical and responsible data broker practices risks cutting off consumers' access to the unique products and services they have come to know, value, and desire.

In the financial sector, ethical and responsible data practices benefit consumers by enhancing protections, encouraging innovation, expanding access to financial products and services, and increasing user convenience. Banks and other financial institutions use data to detect and stop fraudulent purchases with credit cards often before the cardholder learns of such activity.[11] Research suggests that enhanced data practices, including access to third-party data, will empower financial providers to identify and prevent fraud with even greater speed.[12] In addition, ethical and responsible data practices empower financial institutions to identify consumer needs and create products that align with these needs, as well as refine their existing product offerings and platforms to provide consumers with a more streamlined experience.[13] Importantly, ethical and responsible data practices, facilitated in part by third parties like data brokers, expand consumers' access to critical financial instruments and promote lower interest rates.[14]

The benefits described above provide immense value to consumers. Today, companies of all sizes and types rely on ethical and responsible data practices to help them develop their content and services for consumers. In fact, research estimates that the data economy supports more than $30,000 in free and low-cost services for the average consumer each year.[15] Without access to data and the ability to use it ethically and responsibly, entities will likely raise their prices and place their content behind paywalls, destroying the egalitarian Internet individuals in the United States enjoy today. Such restrictions would limit access to critical news, social connectivity, educational platforms, gaming, and entertainment to those individuals with the ability to pay.[16]

Onerous restrictions on ethical and responsible data practices, and on third-party entities like data brokers, risk circumventing access to products and services that consumers not only enjoy, but in many instances, rely on today. The Bureau should ensure that it does not inadvertently undermine the critical benefits consumers derive from data-supported entities.

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[10] J. Howard Beales & Andrew Stivers, *An Information Economy Without Data* 20-21 (Nov. 2022), located here.
[11] *See, e.g.,* M. Sathyapriya & Dr. V. Thiagarasu, *Big Data Analytics Techniques for Credit Card Fraud Detection: A Review*, 6 INT'L J. OF SCIENCE & RSCH 206 (2017), located here.
[12] MCKINSEY GLOBAL INSTITUTE, FINANCIAL DATA UNBOUND: THE VALUE OF OPEN DATA FOR INDIVIDUALS AND INSTITUTIONS at 8 (June 2021), located here.
[13] *Id.* at 6-7.
[14] *Id.* at 6.
[15] Beales & Stivers, *supra* note 11, at 16.
[16] *Id.* at 18-19.

II. Ethical and Responsible Data Practices Drive the Modern American Economy

The Bureau's RFI asks whether data broker practices diminish competition or increase the costs of financial products for consumers.[17] To the contrary, research demonstrates that ethical and responsible data practices, including by data brokers, have precisely the opposite effects.[18] Data-driven business practices bolster competition across the marketplace, promote the viability of small, startup, and midsize businesses, and stimulate activity across all sectors of the economy, including the financial sector.

In the modern U.S. economy, thousands of companies compete for consumers' attention and resources every day. Long before the advent of the Internet and the rise of the digital ecosystem, entities of all kinds relied on data to reach existing and potentially interested consumers with messaging about their products and services.[19] In the analog age, market researchers provided information to companies to help them identify consumers who would likely benefit from their products, as well as information about consumers' desires and needs to help inform product design and improvement.[20] The digital data ecosystem, in which data brokers provide key market insights to entities of all sizes, emulates this process at a remarkably efficient, value-increasing scale, enabling businesses to better understand what consumers want and need, and target their products accordingly. In the digital age, all sizes and types of enterprises engage in ethical and responsible data practices to identify potentially interested consumers, reach these consumers with personalized messaging, and avoid waste in marketing spending.[21] Data brokers help companies leverage and optimize data they may hold to distribute important messaging and expand their reach.

Data brokers have an especially critical role in promoting small businesses' access to the marketplace. Large entities with established customer bases (and hence, increased access to first-party user data) enjoy a competitive advantage over small entities and new market entrants that lack access to comparable first-party data.[22] Large entities can leverage first-party data to identify consumer and market trends, and improve their messaging and product offerings accordingly. Small, midsize, and new market entrants, by the nature of their limited size and operations, are unable to derive similar insights from the data they themselves hold. Data brokers fill this competitive gap by providing small, startup, and midsize entities efficient access to information about potentially interested customers. This allows these enterprises to develop the same sorts of marketing and messaging insights that large entities enjoy, thereby promoting competition and leveling barriers to market entry. Efficient data-driven advertising is the key to accessing the marketplace, and data brokers help small enterprises develop meaningful promotional campaigns and inform consumers about their offerings.

In fact, of 30,500 U.S. small businesses surveyed, 72% described data-driven advertising, driven in part by data brokers, as important to the success of their business; and 76% said

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[17] CFPB RFI, Market-Level Inquiries Question 8, at 16953.
[18] *See, e.g.*, Beales & Stivers, *supra* note 11; DELOITTE, DYNAMIC MARKETS: UNLOCKING SMALL BUSINESS INNOVATION AND GROWTH THROUGH THE RISE OF THE PERSONALIZED ECONOMY (May 2021), located here.
[19] *See* Beales & Stivers, *supra* note 11, at 4-5.
[20] *Id.*
[21] *Id.* at 7.
[22] *Id.* at 8.

personalized advertising, which information from data brokers helps create, helped them find new customers.[23] Small entities that use data-driven advertising experience 16% greater sales growth than similarly-sized entities that do not engage in these practices.[24] Data brokers help small enterprises streamline and reduce their marketing spending, and help these enterprises secure a greater return on their marketing investments.[25] In short, data brokers help our favorite mom-and-pop shops, local bloggers, and Main Street businesses to flourish.

Beyond enhancing the competitiveness of small enterprises, ethical and responsible data practices stimulate activity across all sectors of the modern American economy (including the financial sector) and support millions of jobs each year. Data drives the advertising industry, which, in 2020, spurred $2.8 trillion in sales activity across all sectors of the U.S. economy.[26] For companies of all sizes, the return on investment in advertising is tremendous, thanks in large part to the efficiencies created by ethical and responsible data practices. For every dollar spent on advertising in 2020, companies enjoyed 8.6 dollars in sales.[27] This impact is felt across all industries and spurs activities in all sectors, allowing companies to expand their workforces. Indeed, every $1 million spent on advertising supports 83 jobs throughout the economy, and every direct advertising job supports another 51 jobs across industries.[28]

Ethical and responsible data practices, in alignment with requirements under the Fair Credit Reporting Act ("FCRA"), Gramm-Leach-Bliley Act ("GLBA") and the CFPB's regulations, have a crucial role in fostering growth, promoting competition, and reducing prices in the financial industry.[29] This impact is projected to expand as financial institutions and financial services providers continue to learn how to ethically and responsibly leverage financial and non-financial data (including data available from data brokers) for consumer and economic good. For example, ethical and responsible financial data practices are estimated to impact up to 1.5% of the U.S. Gross Domestic Product ("GDP") by 2030, as financial institutions and service providers use data to innovate and cut costs.[30] Ethical and responsible practices related to non-financial data by financial institutions, including the use of third-party data, increase efficiencies, enable better fraud prediction, and improve workforce allocation, creating cost-savings for financial entities and allowing reduced product costs for consumers.[31]

Beyond the financial sector, ethical and responsible data practices in advertising have been shown to decrease prices across the marketplace. Data-driven advertising permits entities of all types to disseminate product price information widely, encouraging less pricing variation

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[23] *See* DELOITTE, DYNAMIC MARKETS: UNLOCKING SMALL BUSINESS INNOVATION AND GROWTH THROUGH THE RISE OF THE PERSONALIZED ECONOMY at 27 (May 2021), located here.
[24] *Id.*
[25] IHS MARKIT, THE ECONOMIC IMPACT OF ADVERTISING ON THE US ECONOMY 2018 – 2026 at 27 (Nov. 2021), located here.
[26] *Id.* at 9.
[27] *Id.* at 11.
[28] *Id.* at 5.
[29] The FCRA, the GLBA, and related CFPB regulations are located at 15 U.S.C. §§ 1681-1681x, 15 U.S.C. §§ 6801-09 and 12 C.F.R. § 1016, respectively.
[30] MCKINSEY GLOBAL INSTITUTE, FINANCIAL DATA UNBOUND: THE VALUE OF OPEN DATA FOR INDIVIDUALS AND INSTITUTIONS at 10 (June 2021), located here.
[31] *See id.* at 7-8; *see also* Ankit Agarwal, *How Data-Driven Banking Can Transform the Financial Landscape*, FORBES (June 21, 2022 7:30 AM EDT), located here.

as entities compete for customers.[32] In economies where responsible data practices (including common data broker practices) are permitted, prices decrease, while economies that restrict advertising (and the responsible data practices that power advertising) experience price increases.[33]

Restrictions on responsible data practices, including the role of data brokers to empower small, startup, and midsize entities, risk stymieing the growth and flourishing of all sectors of the U.S. economy, eliminating competition and raising consumer prices. The Bureau should consider data's invaluable role in the modern economy and should not inadvertently harm the economy or consumers by imposing undue restrictions on ethical and responsible data practices, including by data brokers.

III. Industry Best Practices Pertaining to Ethical Advertising Empower Consumers to Exercise Control Over Personal Data Practices and Guide Entities to Use Data for Good

In the RFI, the Bureau asks about the breadth of consumer knowledge about data collection and processing practices, and the extent to which consumers may exert control over such practices.[34] Efforts over many years by the ANA, our members (including data brokers), and organizations with which we collaborate in the advertising industry have empowered consumers to understand common data practices and exercise control over data related to them, through resources provided by our Center for Ethical Marketing and through partner organizations. Consumers recognize and utilize these mechanisms to learn about and exercise choice over data use and practices. In tandem, the ANA's Center for Ethical Marketing educates companies to use data responsibly, comply with legal obligations, and avoid misuses that result in consumer harms.

Commitments to best practices by the ANA and our partners, including the Digital Advertising Alliance ("DAA"), require companies to provide meaningful notice of their practices, honor consumer choice, and use data ethically and responsibly, among other obligations.[35] The ANA's members, and other companies that commit to these best practices, are barred from using marketing data and online behavioral data to declare someone ineligible for or impose adverse terms related to credit, employment, health care treatment, or insurance coverage, and from using or transferring data in ways that could further discriminatory ends, among other requirements.[36] The approach embodied in the advertising industry's codes of

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[32] Beales & Stivers, *supra* note 11, at 8.
[33] *Id* at 21-22.
[34] *See* CFPB RFI, Market-Level Inquiries Questions 15-17, at 16954.
[35] *See* The ANA, *Guidelines for Ethical Business Practice* (2020), located here; *see also* The DAA, *Self-Regulatory Principles for Online Behavioral* Advertising (July 2009); The DAA, *Self-Regulatory Principles for Multi-Site Data* (Nov. 2011); The DAA, *Application of Self-Regulatory Principles to the Mobile Environment* (Jul. 2013); The DAA, *Application of the DAA Principles of Transparency and Control to Data Used Across Devices* (Nov. 2015). The DAA's Self-Regulatory Principles may be accessed at https://digitaladvertisingalliance.org/principles.
[36] *See* The ANA, *Guidelines for Ethical Business Practice, Part I § V: Limitations on the Use of Data for Consumer Data-Driven Marketing* (2020), located here, providing that:

Data used for Marketing should not be used for the following purposes:

conduct has been encouraged and praised by past Administrations and the Federal Trade Commission ("FTC"), and at times has predated important legislative efforts, such as the Children's Online Privacy Protection Act ("COPPA").[37]

As part of our commitment to responsible data practices, the ANA, our members, and advertising industry partners are bound to honor the robust civil rights, anti-discrimination, and anti-abuse protections provided by existing laws, including the Civil Rights Act of 1964, the Americans with Disabilities Act, the Fair Housing Act, the Equal Credit Opportunity Act, the FCRA, among others, as well as prohibitions on unfair, deceptive, and abusive trade practices in the FTC Act and Consumer Financial Protection Act ("CFPA"). These laws protect consumers from a number of harms described in the RFI, and provide the basis for claims alleging illegal discrimination, abuse, or civil rights violations in advertising distribution and other impermissible uses of data that further discriminatory and harmful ends. Indeed, these laws have already been used to remedy alleged discrimination in generating target audiences for online advertisements, to require financial institutions to investigate the data security practices of their service providers, to prohibit unexpected uses of information, and to protect consumers when companies do not employ sufficient safeguards to protect data from malicious actors.[38] The

- **Employment Eligibility.** Determining adverse terms and conditions of or ineligibility for employment, promotion, reassignment, sanction, or retention as an employee.
- **Credit Eligibility.** Determining adverse terms and conditions of or ineligibility of an individual for credit.
- **Health Care Treatment Eligibility.** Determining adverse terms and conditions for or ineligibility of an individual to receive health care treatment.
- **Insurance Eligibility and Underwriting and Pricing.** Determining adverse terms and conditions of or ineligibility of an individual for insurance, including, but not limited to, health insurance.

Data collected exclusively for Marketing should be used only for Marketing purposes. Entities should not use data for Marketing where such use has been prohibited.

See also The DAA, *Self-Regulatory Principles for Multi-Site Data, Part II: Restrictions on the Use of Multi-Site Data for Eligibility for Employment, Credit, Healthcare, or Insurance* (Nov. 2011), providing that:

[A] Third Party or Service Provider should not collect, use, or transfer Multi-Site Data for the following purposes:

- **A. Employment Eligibility.** Determining adverse terms and conditions of or ineligibility for employment, promotion, reassignment, sanction, or retention as an employee.
- **B. Credit Eligibility.** Determining adverse terms and conditions of or ineligibility of an individual for credit.
- **C. Health Care Treatment Eligibility.** Determining adverse terms and conditions for or ineligibility of an individual to receive health care treatment.
- **D. Insurance Eligibility and Underwriting and Pricing.** Determining adverse terms and conditions of or ineligibility of an individual for insurance, including, but not limited to, health insurance.

[37] FTC, *Cross-Device Tracking, An FTC Staff Report* (Jan. 2017) at 11, located here ("FTC staff commends these self-regulatory efforts to improve transparency and choice in the cross device tracking space...DAA [has] taken steps to keep up with evolving technologies and provide important guidance to their members and the public. [Its] work has improved the level of consumer protection in the marketplace."); *see also* Katy Bachman, *FTC's Ohlhausen Favors Privacy Self-Regulation*, Adweek (June 3, 2013), located here (quoting then-FTC Chair Maureen Ohlhausen, who said the DAA is "is one of the great success stories in the [privacy] space."); Speech by Danny Weitzner, We Can't Wait: Obama Administration Calls for A Consumer Privacy Bill of Rights for the Digital Age (February 23, 2012), located here (praising DAA's self-regulatory program as "an example of the value of industry leadership as a critical part of privacy protection going forward").

[38] *See, e.g.*, Decision and Order, *In the Matter of Ascension Data & Analytics, LLC*, Docket No. C-4758 (F.T.C. Dec. 22, 2021).

ANA, our members (including data brokers), and advertising industry partners are committed to ensuring the overarching protections provided by these laws are respected in digital spaces. Research demonstrates the effectiveness of consumer-facing education and choice mechanisms provided by the advertising industry and shows that consumers use these mechanisms to learn about and exercise choice over data and data practices. For example, the DAA's AdChoices icon is widely used by digital advertisers to educate consumers regarding online behavioral advertising (the practice of using various data points to provide a given consumer an advertisement based on their perceived interests).[39] The AdChoices icon accompanies these advertisements, notifying consumers how online behavioral advertising functions, and providing consumers a centralized means to exercise control over what data is collected about them.[40] In a recent survey of U.S. adults, more than 80% of respondents indicated they recognized the AdChoices icon and understood it offers them choice and control pertaining to online behavioral advertising.[41]

In addition, the ANA's Center for Ethical Marketing provides educational resources to inform consumers about common data collection and use practices involved in advertising, and provides several mechanisms for consumers to opt out of common advertising and marketing practices.[42] The Center for Ethical Marketing guides companies to use data ethically and responsibly, fields consumer inquiries related to data practices in advertising, and, when companies persist in potentially harmful or deceptive practices, refers such companies to the FTC for further investigation.[43] In 2022 alone, the ANA processed nearly 10,000 consumer inquiries, working directly with companies to remedy the inquiries in the vast majority of instances and referring non-compliant cases to the FTC for further investigation and possible enforcement action.[44] The Center for Ethical Marketing has also investigated and recommended that the DAA pursue 125 public cases in partnership with the Better Business Bureau where companies act in contravention of best practices and engage in potentially harmful conduct.[45]Advertising best practices observed and enforced by the ANA, our members, and other advertising industry leaders evidence our collective commitment to ethical and responsible data use, consumer education, and respect for consumer choice. As consumers broadly recognize and utilize education and choice mechanisms created by the ANA and our industry partners to exercise control over common data collection and use practices, the CFPB should acknowledge and consider these practices, which are founded on principles that have existed for many years.

IV. Congress is the Appropriate Entity to Enact Comprehensive Federal Privacy Legislation

The Bureau asks how it can use its "supervision, enforcement, research, rulemaking, or consumer complaint functions with respect to data brokers and related harms."[46] The ANA

[39] *See, e.g.*, YourAdChoices, *Learn*, located here.
[40] *Id.*
[41] *See* Lou Mastria, *New DAA-Commissioned Survey Shows 'AdChoices' Icon Recognition Has Grown to 82 Percent in 2021*, THE DAA (June 3, 2021), located here.
[42] *See*, The ANA, *Accountability: Consumer*, located here.
[43] *See* The ANA, *Ethics Compliance Report Reporting Period: July - December 2022 and 2022 Overview* (Feb. 2023), located here.
[44] *Id.*
[45] *See* The DAA, *Enforcement*, located here.
[46] CFPB RFI, Market-Level Inquiries Question 22, at 16954.

responds that Congress is the appropriate body to legislate comprehensive regulations and standards related to data practices, and that the Bureau's regulatory oversight authority related to data practices is limited to entities subject to the FCRA, the GLBA, the CFPA, and other laws the CFPB enforces (*i.e.*, consumer reporting agencies, furnishers of information to consumer reporting agencies, and financial institutions). Congress is the sole body vested with the authority to enact comprehensive federal privacy legislation that would ensure ethical and responsible data practices continue to flourish, while barring misuses of personal data that put consumers at risk of harm. The ANA supports federal privacy legislation that incorporates these principles, such as Privacy for America's *Principles for Privacy Legislation* ("P4A Framework").[47]

The P4A Framework provides a particularly apt model for federal privacy legislation by flatly barring misuses of data that foster inequity, such as uses of data to discriminate in credit, insurance, financial aid, employment, health care treatment, education admissions, and housing contexts.[48] The P4A Framework would also explicitly prohibit the use of data related to race, color, religion, national origin, sexual orientation, or gender identity to discriminate against individuals by charging higher prices or rates for products or services, as well as uses of data to commit or assist in fraud or for stalking.[49] Data protection standards like these mitigate intentional misuses of data and unintended data vulnerabilities that may harm consumers, while empowering advertisers to continue providing equitable information access and the invaluable ad-supported content and services that are vital to the American public and economy at large. As elected representatives vested with broad investigatory power, Congress is best suited to determine an appropriate national and economy-wide approach to data regulation, including any potential regulation of data brokers or common data broker practices that benefit countless Americans each day.

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Thank you for the opportunity to submit Comments on these important topics. Please do not hesitate to contact us with any questions regarding this submission.

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[47] Privacy for America, *Principles for Privacy Legislation*, located here.

[48] Privacy for America, *Principles for Privacy Legislation Part 1 § 3.A*, located here, providing that:

This law designates as *per se* unreasonable the collection, use, maintenance, or transfer of personal information, in or affecting commerce, as follows:

A. **Eligibility.**
    1. Using personal information to determine that an individual is ineligible for any of the benefits listed below, or to impose adverse terms or conditions in granting such benefits, except as permitted under federal or state laws or regulations applicable to the covered organization:
        a. Employment;
        b. Credit;
        c. Insurance;
        d. Health care;
        e. Education admissions;
        f. Financial aid; or
        g. Housing.

[49] *See* Privacy for America, *Principles for Privacy Legislation Part 1 §§3.B-3.D,* located here.